

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID L EVANS,

Petitioner

VS.

KATE J EVANS,

Respondent

) Case Number: FDI-23-797832

) Hearing Date: September 22, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, ATTORNEY
FEES AND COSTS, DEADLINE PDDS AND FILING TAXES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner David Evans (Father) and Respondent Kate Evans (Mother). Per the
Petition for Dissolution of Marriage filed 3/27/23 and the Response and Request for Dissolution
of Marriage filed 10/02/25, the parties married on 4/21/13 and separated on 2/26/23, for a
marriage of 9 years and 10 months. They share two minor children: Oona (DOB: 04/28/2013) and
Heath (DOB: 10/28/2015).
- 2) On 4/26/23, a Stipulation and Order for Child Custody and Visitation was filed wherein the
parties agreed they would share joint legal and joint physical custody of their children and would
have an equal timeshare.
- 3) On for hearing is, Mother's Request for Order filed 7/28/26 seeking guideline child support,
temporary guideline spousal support, \$15,000 in need-based attorney's fees and costs, a deadline
for Father to "file" his Preliminary Declaration of Disclosure, and a deadline for Father to file any
unfiled tax returns. Mother asserts Father has not filed tax returns in over three years, and Father

1 earns more income than Mother. Mother asserts Father lives in the family residence which has an
2 AirBnB unit attached and is lucrative.

- 3 4) On 7/28/26, Mother filed an Income and Expense Declaration. Mother states that she is 49 years
4 old and works 30 hours per week as a self-employed marriage and family therapist. Mother states
5 her average monthly income is \$11,923. Mother estimates that Father's monthly income is
6 "TBD." Mother's healthcare deductions are approximately \$312 per month. Mother's additional
7 healthcare costs not covered by insurance are approximately \$1,000 per month. Mother states she
8 has \$81,200 in her cash and checking accounts, savings, credit union, money market, and other
9 deposit accounts. Mother has stocks, bonds, and other assets that total \$182,000. Mother's
10 monthly total expenses are \$9,645. Mother's total debts amount to \$11,500, and Mother pays
11 \$500 toward Mother's debts. Oona and Heath spend 50% of their time with Mother. Mother
12 spends \$200 per month for children's educational or special needs.
- 13 5) On 7/28/26, Mother's attorney Michelle Harris filed an Attorney Fee Declaration. Ms. Harris
14 asserts that Mother will incur \$15,000 in attorney's fees and costs to establish initial child and
15 spousal support orders, conduct discovery and settlement of the community estate (including the
16 valuation of the family residence, Father's alleged buyout of its equity, the refinance,
17 determination of the value and division of community retirement, stock, savings, checking, and
18 Crypto accounts); and to draft final declarations of disclosure and a marital settlement agreement,
19 and to effectuate the settlement agreement.
- 20 6) On 8/04/26, a Proof of Service was filed by Mother stating that her Request for Order and related
21 pleadings were electronically served on Father on 8/4/26.
- 22 7) Father has filed no pleadings responding to Mother's 7/28/26 Request for Order.

23 **B. Tentative Ruling**

- 24 1) Because Father is self-represented, his consent to receive electronic service is required under
25 Code of Civil Procedure section 1010.6(c). There is no indication in the record that Father, a self-
26 represented party, has consented to receive electronic service. Given that this motion has not been
27 properly served, the hearing on Mother's 7/28/2026 Request for Order is hereby **continued to**
28 **December 3rd at 9:00 AM in Dept. 403.**
- 29

- 2) At least 16 Court days prior to the next hearing date, Mother shall serve her 7/28/2026 Request for Order and related moving papers on Father using a method of service authorized by the Code of Civil Procedure.
- 3) At least 16 Court days prior to the next hearing date, Mother shall file and serve an updated Income and Expense Declaration which provides an estimate of Father's monthly gross income and to which she attaches a Profit and Loss Statement and Schedule C for 2025 as well as a year-to-date Profit and Loss Statement.
- 4) At least 9 Court days prior to the next hearing date, Father shall file and serve a Responsive Declaration, an Income and Expense Declaration, and a Statement of Support Calculation (per San Francisco Local Rules, rule 11.7(A)(2)(b)).
- 5) At least 5 Court days prior to the next hearing date, Mother shall file and serve a Reply Declaration and a Statement of Support Calculation.
- 6) Mother's attorney shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).